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whether disclosed prior to or after the Effective Date, the fact that discussions have taken, are taking, or may take place about the Purpose, and the existence and terms of this Agreement. The Parties acknowledge and understand that any personal data in the Confidential Information will be subject to a separate data processing agreement, which shall take precedence over this Agreement to the extent of any inconsistency.

3. Receiving Party will: (a) hold the Disclosing Party's Confidential Information in confidence; (b) restrict disclosure of such Confidential Information to those of its employees, directors, officers, financial and legal advisors, or other agents ("**Representatives**") with a need to know such information and who have previously agreed (e.g. as a condition to their employment or agency) to be bound by terms respecting the protection of confidential information as restrictive as the obligations of this Agreement and which would extend to the Disclosing Party's Confidential Information; (c) use such Confidential Information only for the Purpose; and (d) not modify, reverse engineer, decompile, create other works from, or disassemble any such Confidential Information unless otherwise permitted in writing by the Disclosing Party. The Receiving Party agrees that any Confidential Information shall be handled with at least the same degree of care that it applies to its own confidential information, but in no event, less than a reasonable degree of care. The Receiving Party shall be responsible and liable for any unauthorised disclosure of Confidential Information or breach of its obligations under this Agreement by its Representatives.

4. The restrictions in Section 3 will not apply to the extent Confidential Information (a) was publicly known at the time of disclosure or became publicly available after disclosure to the Receiving Party without breach of this Agreement; (b) was lawfully received by the Receiving Party from a third party without such restrictions and such third party does not have any contractual or other obligations of confidentiality to the Disclosing Party; (c) was known to the Receiving Party or its Representatives without such restrictions prior to its receipt from the Disclosing Party; or (d) was independently developed by the Receiving Party without breach of this Agreement. The burden to prove any of the above exemptions shall rest on the Receiving Party. In the event Confidential Information of the Disclosing Party is required to be disclosed to any governmental agency or is otherwise required to be disclosed by law, before making such disclosure, the Receiving Party shall give the Disclosing Party sufficient prior written notice of such required disclosure to allow the Disclosing Party time to object to the disclosure to the appropriate authorities and/or take action to ensure confidential handling of such disclosures.

5. Upon written request of the Disclosing Party, all copies of the Disclosing Party's Confidential Information in the possession of the Receiving Party, its Representatives will be returned to the Disclosing Party or promptly destroyed with a written statement of compliance signed by a duly authorised officer and/or person authorised to make such a statement, except the Receiving Party is not obligated to return or destroy copies of Confidential Information if required for compliance with legal,

regulatory, electronic backup or document retention requirements, provided that any Confidential Information retained pursuant to such requirements remains subject to the obligations of this Agreement.

6. Neither Party is required to disclose any particular information to the other and any disclosure pursuant to this Agreement is entirely voluntary and does not: (a) create warranties or representations of any kind or a commitment as to any product or service; (b) constitute solicitation of any business, the incurring of any obligation not specified herein or any obligation of either Party to enter into a business opportunity related to the Purpose or otherwise; or (c) constitute a license or transfer of ownership of any of the intellectual property rights of the Disclosing Party.

7. The Disclosing Party acknowledges that the Receiving Party may currently or in the future be developing information internally, or receiving information from other parties, that is similar or identical to the Disclosing Party's Confidential Information. Accordingly, nothing in this Agreement will be construed as a representation or agreement that the Receiving Party will not develop or have developed for it, products, concepts, systems or techniques that are similar to or compete with the products, concepts, systems or techniques contemplated by or embodied in such Confidential Information, provided that the Receiving Party does not violate any of its obligations under this Agreement. Notwithstanding anything to the contrary herein, and so long as it does not breach its obligations under this Agreement, the Receiving Party and its Representatives shall be permitted to use and employ any generalised ideas, concepts, know-how, methods, techniques or skills gained, learned or unintentionally retained in unaided memory during the course of reviewing Confidential Information. No right or license is granted for any patents, copyrights or trade secrets in this Section 7.

8. ALL CONFIDENTIAL INFORMATION IS PROVIDED "**AS IS**". NEITHER PARTY MAKES ANY WARRANTIES, EXPRESS, IMPLIED, OR OTHERWISE, REGARDING THE ACCURACY OR COMPLETENESS OF ITS CONFIDENTIAL INFORMATION. Disclosing Party shall not have any liability whatsoever to Receiving Party relating to or resulting from the use of Confidential Information by Receiving Party or any decisions made by Receiving Party relating to or resulting from the use of any Confidential Information.

9. This Agreement is effective as of the Effective Date and shall terminate in three years from the Effective Date, however it may be terminated by either Party at any time upon written notice. Notwithstanding such termination: (i) with respect to Confidential Information disclosed during the term of this Agreement, the obligations under Section 3 shall survive termination for three years from the date of each disclosure, (ii) with respect to trade secrets and personal data protected under applicable privacy law, the obligations under Section 3 shall be perpetual, and (iii) Sections 4, 5, 6, 7, 8, 9, 10 and 11 will survive.

10. This Agreement supersedes all previous agreements between the parties regarding the Confidential Information. Notwithstanding the foregoing, this Agreement does not supersede or amend any agreement between the Parties for the purchase or use of either Party's products or services. Neither Party shall assign any of its rights or obligations hereunder without the prior written consent of the other Party. Any attempted assignment in violation of this section will be void and of

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